

GORSUCH, J., dissenting

allowing “separate sovereigns” to do sequentially what neither may do separately, the government assures us the Fifth Amendment’s phrase “same offence” does this work. Adopting the government’s argument, the Court supplies the following syllogism: “[A]n ‘offence’ is defined by a law, and each law is defined by a sovereign. So where there are two sovereigns, there are two laws, and two ‘offences.’” *Ante*, at 683.

But the major premise of this argument—that “where there are two laws there are ‘two offenses’”—is mistaken. We know that the Constitution is not so easily evaded and that two statutes *can* punish the same offense.¹⁰ The framers understood the term “offence” to mean a “transgression.”¹¹ And they understood that the same transgression might be punished by two pieces of positive law: After all, constitutional protections were not meant to be flimsy things but to embody “principles that are permanent, uniform, and universal.”¹² As this Court explained long ago in *Blockburger v. United States*, “where the same act or transaction constitutes a violation of two distinct statutory provisions, the test to be applied to determine whether there are two offenses or only one, is whether each provision requires proof of a fact which the other does not.”¹³ So if two laws demand proof of the same facts to secure a conviction, they constitute a single offense under our Constitution and a second trial is forbidden. And by everyone’s admission, that is exactly what we have here: The statute under which the federal government proceeded required it to prove no facts beyond those Alabama needed to prove under state law to win its conviction; the two prosecutions *were* for the same offense.

¹⁰ *Whalen v. United States*, 445 U.S. 684, 691–692 (1980).

¹¹ *Dictionarium Britannicum* (N. Bailey ed. 1730); see also N. Webster, *An American Dictionary of the English Language* (1828) (defining an “offense” as including “[a]ny transgression of law, divine or human”).

¹² 4 Blackstone, *Commentaries* 3.

¹³ 284 U.S. 299, 304 (1932).